

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: FEI Company

Vendor City/State: HILLSBORO, OR

Cage: 1FJ95

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

Service Contract for an FEI Helios G4 UX Scanning Electron Microscope (SEM)/Focused Ion Beam (FIB).
POP April 7, 2025 through April 6, 2026.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☒ A. ONLY ONE RESPONSIBLE SOURCE
- ☐ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

FEI Company is the original manufacturer of the Helios G4 UX SEM/FIB. They possess all of the proprietary drawings, procedures, software updates, and other documentation needed to maintain the instrument in a timely manor.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

FEI Company employs a large group of factory trained personnel capable of repairing the Helios G4 UX and or providing technical support via telephone or E-mail.

FEI Company owns the proprietary rights to all data, drawings, schematics and have in-house, both trained and licensed technical personnel as well as a stockpile of repair/replacement parts. These elements are all necessary and critical to enable both timely and accurate repairs of the FEI Company Equipment identified above.

Only FEI Company has Trained Technical Personnel who are experienced in the analysis and repair of this equipment, and have access to and can utilize the proprietary data necessary for both the analysis, and subsequent repair of equipment and access to parts/components unique to the equipment.

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



Signature



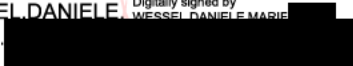
Name (Printed) / Phone #



Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

WESSEL DANIELE MARIE  Digitally signed by WESSEL DANIELE MARIE

Contracting Officer Signature

Name (Printed) / Phone #

Date